

From: ombudsman@ombudsman.gov.au
Subject: Commonwealth Ombudsman Complaint - 2021-103546 Richard McLean
Date: 15 November 2021 at 12:22 pm
To: richarddrawsstuff@gmail.com



Our ref: 2021-103546

Dear Dr McLean

I am writing to you following your recent emails to our Office on PHI 2021-700913.

I also note you recently lodged a new complaint about HCF with the private health insurance team. In this complaint you provided copies of an income protection insurance policy you had with HCF. While HCF is a private health insurer it provides other insurance products. Our Office is limited to considering complaints about private health insurance products. This means that your concerns about the decision to refuse your income protection claim is not one our Office may consider because it is not within our jurisdiction.

I note that you have raised concerns about the following agencies: IPC health, the Health Care Complaints Commissioner, Mental Health Care Complaints Commissioner, the Australian Health Practitioner Regulation Agency, the Victorian Ombudsman, the Independent Broad Based Anti Corruption Commission, the Victorian Inspectorate, Footscray Police, the Hon Greg Hunt MP, the Chief Executive Officer of Sane, the Chief Executive Officer of the Blackdog Institute, Maribyrnong Criminal Investigation Unit, the Victims of Crime Assistance Tribunal, the Victorian Human Rights and Equal Opportunity Commission, the Saltwater clinic and a hospital. Please note that all of these agencies are outside the jurisdiction of the Commonwealth Ombudsman. This means our Office does not have the powers to investigate your concerns about these organisations.

You also raised concerns about Comcare's decision to refuse your claim for workers compensation. You stated in your email that you had lodged an application with the Administrative Appeals Tribunal (AAT) to have this decision reviewed. I have considered your complaint and have decided not to investigate this issue. The Commonwealth Ombudsman's Office does not usually investigate complaints where there is a structured review process available, as in this instance with the AAT. This is because our Office is not a merits review body, and we are unable to overturn Comcare's decision about your claim. Accordingly, I will not consider this issue further.

You stated that you had concerns about Centrelink's decision to move you from the Disability Support Pension (DSP) to Jobseeker. You said that you were disadvantaged by this because you were not able to look for jobs, as a requirement of your social security payments. It is unclear whether you have contacted Centrelink about this issue. If you want to discuss your mutual obligations with Centrelink you may call the Jobseekers helpline on 132 850. If you want to lodge a complaint about this issue, you can contact Complaints and Feedback on 1800 132 468 or via the online [complaint form](#). Please note, the Ombudsman's Office will generally decline to investigate a matter until it has been raised as a formal complaint with the agency involved.

Finally, I note that your concerns about an ASIO official have been responded to by the Public Interest Disclosure team. Accordingly, our team will not contact you further about these issues.

Please note, your complaint file remains closed at our Office.

Yours sincerely

Roslyn
Investigation Officer
Commonwealth Ombudsman
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Website: ombudsman.gov.au



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